

INDEPENDENT CONTRACTOR AGREEMENT

This **Independent Contractor Agreement** (“Agreement”) is made and entered into on the effective date of execution, by and between **Bambini Doulas**, a California Limited Liability Company (hereinafter referred to as “Agency”), having its principal place of business at www.bambinidoulas.com, and the undersigned **Contractor** (hereinafter referred to as “Contractor”).

The Agency and Contractor may collectively be referred to as the “Parties.”

By entering into this Agreement, both Parties agree to the terms and conditions set forth herein governing the provision of doula services.

SECTION 1 — TERM AND TERMINATION

1.1 Term

This Agreement shall become effective on the date of execution and shall continue for a period of **twelve (12) months**, unless terminated earlier in accordance with this Agreement.

1.2 Termination of Scope of Work

The Agency reserves the right to terminate this Agreement or any Scope of Work, in whole or in part, at any time and for any reason, including but not limited to dissatisfaction with performance or termination of a primary client engagement.

1.3 Termination for Cause

Either Party may terminate this Agreement for cause by providing **five (5) days’ written notice**, provided the breach is capable of being cured. If the breach is not remedied within this period, termination may take effect immediately.

If the cause is not curable—such as fraud, violence, or breach of confidentiality—the Agreement may be terminated immediately, with written notice provided within two (2) days.

SECTION 2 — INDEPENDENT CONTRACTOR STATUS

2.1 Relationship of Parties

The Contractor is engaged as an **independent contractor**, and nothing in this Agreement shall be construed as creating an employer-employee relationship, partnership, or joint venture.

2.2 Non-Exclusivity

The Contractor retains the right to perform services for other clients or organizations. Similarly, the Agency retains the right to engage other contractors or personnel for similar services.

SECTION 3 — SERVICES TO BE PERFORMED

3.1 Scope of Work

All services to be performed shall be outlined in a separate **Scope of Work (Attachment A)**, which includes details such as responsibilities, duration, and compensation. The Contractor retains the right to accept or decline assignments.

3.2 Method of Performance

The Contractor shall determine the method and manner of performing services, provided that all services meet the Agency's quality standards. The Agency retains the right to supervise outcomes, inspect work, and request modifications if necessary.

3.3 Qualifications

The Contractor represents that they possess the necessary training, certification, and experience to perform doula services professionally and in accordance with industry standards.

The Contractor shall not subcontract doula services without prior written consent from the Agency.

3.4 Scheduling

The Contractor shall coordinate schedules directly with assigned clients while keeping the Agency informed of all arrangements.

SECTION 4 — COMPENSATION

4.1 Rates

Compensation shall be defined in the Scope of Work.

4.2 Payment Terms

Payments shall be made on a **weekly basis**, in accordance with the Agency's billing cycle.

4.3 Invoicing

The Contractor must maintain accurate time records and submit invoices detailing services performed.

4.4 Expenses

The Contractor is responsible for personal expenses such as transportation and meals. Parking expenses may be reimbursed if approved in advance. No other reimbursements shall be made without written approval.

4.5 Benefits and Taxes

The Contractor is not entitled to employee benefits. The Contractor is solely responsible for all applicable taxes, including income and self-employment taxes. Payments may be reported via applicable tax forms.

4.6 Insurance

The Contractor shall maintain professional liability insurance and provide proof upon request, with appropriate coverage limits as required by the Agency.

SECTION 5 — CONFIDENTIALITY & INTELLECTUAL PROPERTY

5.1 Confidentiality

Both Parties agree to maintain strict confidentiality of all proprietary and sensitive information. This includes business operations, client data, and internal processes.

Confidential information may only be used for purposes directly related to this Agreement and may not be disclosed without prior written consent.

Exceptions include publicly available information, independently developed information, or disclosures required by law.

5.2 Residual Rights

The Contractor may use general skills, knowledge, and experience gained during the engagement, provided no confidential information is disclosed.

5.3 Non-Solicitation

The Contractor agrees not to solicit Agency clients, employees, or contractors during the Agreement and for **twelve (12) months** following termination.

5.4 Enforcement

Any breach of this section may result in injunctive relief and legal action, including recovery of damages and legal fees.

5.5 Survival

All obligations under this section shall survive termination of the Agreement.

SECTION 6 — MISCELLANEOUS PROVISIONS

6.1 Notices

All notices must be in writing and delivered via personal delivery, postal mail, or email to the registered contact details of the Parties.

6.2 Non-Discrimination

The Contractor agrees not to discriminate based on race, gender, religion, nationality, or any protected characteristic.

6.3 Entire Agreement

This Agreement constitutes the entire understanding between the Parties and supersedes all prior agreements. Any modifications must be in writing.

6.4 Severability

If any provision is found invalid or unenforceable, the remaining provisions shall remain in full force.

6.5 Governing Law

This Agreement shall be governed by the laws of the **State of California**. Any disputes shall first be resolved through mediation, and if necessary, through courts located in California.

6.6 Assignment

The Contractor may not assign this Agreement without prior written consent from the Agency.

6.7 Execution

This Agreement may be executed in counterparts and via electronic signatures, each of which shall be considered legally binding.

6.8 No Waiver

Failure to enforce any provision shall not constitute a waiver of rights.

ATTACHMENT A — SCOPE OF WORK

The Contractor agrees to provide postpartum and/or birth doula services, including but not limited to:

- Providing emotional, physical, and informational support
- Assisting with newborn care (feeding, diapering, soothing)
- Supporting breastfeeding, pumping, or formula feeding
- Assisting with postpartum recovery
- Supporting family adjustment and transitions
- Performing light household tasks related to newborn care
- Monitoring emotional well-being and offering guidance
- Providing evidence-based resources and referrals

Requirements

The Contractor must:

- Manage time effectively
- Maintain consistent communication with the Agency and clients
- Provide regular updates on service delivery

Compensation

Compensation shall be based on a mutually agreed hourly rate (e.g., \$50/hour), as defined per assignment.

Amendments

The Scope of Work may be modified by the Agency with reasonable written notice.

ACKNOWLEDGMENT

By signing below, both Parties confirm that they have read, understood, and agreed to all terms and conditions outlined in this Agreement.

FOR CONTRACTOR

Name: _____

Signature: _____

Date: _____

FOR BAMBINI DOULAS

Authorized Representative: _____

Signature: _____

Date: _____